

in the Fitzgerald case on September 18, 1973. *Decision on the Appeal of A. Ernest Fitzgerald*, as reprinted in App. 60a. The Examiner held that Fitzgerald's dismissal had offended applicable civil service regulations. *Id.*, at 86a-87a.¹⁵ The Examiner based this conclusion on a finding that the departmental reorganization in which Fitzgerald lost his job, though purportedly implemented as an economy measure, was in fact motivated by "reasons purely personal to" respondent. *Id.*, at 86a. As this was an impermissible basis for a reduction in force,¹⁶ the Examiner recommended Fitzgerald's reappointment to his old position or to a job of comparable authority.¹⁷

¹⁵ Fitzgerald's position in the Air Force was in the "excepted service" and therefore not covered by civil service rules and regulations for the competitive service. *Fitzgerald v. Hampton*, 152 U. S. App. D. C. 1, 4, 467 F. 2d 755, 758 (1972); see *CSC Decision*, App. 63a-64a. In *Hampton*, however, the court held that Fitzgerald's employment nonetheless was under "legislative protection," since he was a "preference eligible" veteran entitled to various statutory protections under the Veterans' Preference Act. See 152 U. S. App. D. C., at 4-14, 467 F. 2d, at 758-768. Among these were the benefits of the reduction-in-force procedures established by civil service regulation. See *id.*, at 4, 467 F. 2d, at 758.

¹⁶ The Examiner found that Fitzgerald in fact was dismissed because of his superiors' dissatisfaction with his job performance. App. 86a-87a. Their attitude was evidenced by "statements that he was not a 'team player' and 'not on the Air Force team.'" *Id.*, at 83a. Without deciding whether this would have been an adequate basis for an "adverse action" against Fitzgerald as an "inadequate or unsatisfactory employee," *id.*, at 86a, the Examiner held that the Commission's adverse action procedures, current version codified at 5 CFR pt. 752 (1982), implicitly forbade the Air Force to employ a "reduction in force" as a means of dismissing respondent for reasons "personal to" him. App. 87a.

¹⁷ The Commission also ordered that Fitzgerald should receive backpay. *Id.*, at 87a-88a. Following the Commission's order, respondent was offered a new position with the Defense Department, but not one that he regarded as equivalent to his former employment. Fitzgerald accordingly filed an enforcement action in the District Court. This litigation ultimately culminated in a settlement agreement. Under its terms the United States Air Force agreed to reassign Fitzgerald to his former position as Management Systems Deputy to the Assistant Secretary of the Air